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Probate Calendar for Tuesday September 29, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates (by Michele L. Rowe, Judge Pro Tem) Presiding

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
5	22PR-0402	Estate of: Antonette Waiton	OSC re Inventory and Appraisal cont'd 3/4/25, 11/18/25, & 1/28/26	CONTINUED LIST. <i>The matter is continued to March 2, 2027 at 9:00 a.m. in D-4. All additional items must be filed by February 2, 2027.</i>
11	25PR-0119	Estate of: James Wilde, Sr.	Petition Filed: 04/03/2026 - Final Distribution	CONTINUED LIST. <i>The Petition is continued to February 16, 2027 at 9:00 a.m. in D-4. All additional items must be filed by January 19, 2027. The Court notes a Petition has been filed for the Appointment of a Successor Personal Representative. The Petitioner in that matter should review the removal and appointment of successor process before the February 16, 2027 hearing. The new Petition appears to contain a purported Will that was not admitted to probate. It appears from the Will provided that Mark Wilde, Sr. has been disinherited from the estate and is not nominated to act as personal representative. This will need to be addressed.</i>
13	25PR-0278	In Re: Gregory A. Eversman 2007 Revocable	Petition Filed 8/25/2025 [DUE 9/1/26] - Confirm	DENIED LIST: <i>The matter is recommended for denial. The Court has continued the matter three times and requested evidence was not provided. Exhibit A to the trust has not been provided to the Court with the Trust copy. At this point,</i>

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		Trust May 30, 2007	Validity of Trust; cont'd 3/3/26, 6/9/26	<i>after three hearings, it is presumed Exhibit A does not exist. It is noted a general assignment was provided from 2007, but the general assignment does not cover future owned real property. The real property in question was not acquired by the decedent until 2021. (Ukkestad vs. RBS Asset Finance, Inc. (2015), 235 Cal.App.4th 156, 163.) It does not appear the matter can proceed under Probate Code section 850.</i>
16	25PR-0363	Estate of: Rudolph Robinson	Petition Filed 10/24/2025 [DUE 8/25/26] - Spousal Property Petition; cont'd 6/2/26, 6/23/26	DENIED LIST. <i>At the last hearing on June 23, 2026, additional materials were ordered to be filed by August 25, 2026. Nothing has been filed to address the below. As such, it is recommended the matter be denied. If the matter is not denied, the following issues are noted from the last hearing:</i> <i>1. The Declaration filed on May 14, 2026 indicates that the E-trade account, the subject of this Petition, was created at approximately the time of marriage in 2014. The Declaration filed by the Attorney on June 1, 2026 indicates the account was opened August 13, 2013. The parties married April 18, 2014. Thus, the account was created prior to marriage. Petitioner alleges \$5,000 from a joint account held in 2013, prior to marriage, was used to open the account. These funds were not community property. It is unclear under what legal authority this asset is community property. Were the funds transmuted by later writing? The Petition does not so state, and indicates the opposite. There does not appear to be legal support to transfer the property under the theory currently before the Court.</i>

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				2. <i>The matter is recommended for denial as to the community property allegation. The Petition could be approved as a separate property asset with portions of the asset passing to the issue of a deceased sibling. The Court lacks information to determine the distribution under Probate Code section 6401 subsection (c)(2). It is unclear if the Petitioner still wants an evidentiary hearing. Notice of Hearing to the issue of the deceased siblings of further proceedings is needed before an evidentiary hearing can be set.</i> 3. <i>A proposed order is needed.</i>
22	26PR-0284	Estate of: John Rice	Petition Filed: 08/20/2026 WILL	CONTINUED LIST. <i>The Petition is continued to October 20, 2026 at 9:01 a.m. in D-4. All additional items must be filed by October 13, 2026. The following is noted:</i> 1. <i>All persons entitled to notice were not served with the Notice of Petition to Administer Estate. (JC Form DE-121; Prob. Code, § 8110.) Specifically, the parties who are named in the will attached to the Petition but not included in Item 8 of the Petition as noted below. A waiver of notice and the warnings under the DE-121 form is acceptable.</i> 2. <i>The caption and body of the Petition do not match. Item 2b requests Petitioner be appointed as executor, but the caption indicates Letters of Administration with Will Annexed is requested. This request in the caption appears to be an error as Petitioner is the nominated executor in the Will provided. Confirmation is needed.</i>

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				3. <i>Item 8 of the Petition is incomplete. It requires that the petition list "all persons mentioned in decedent's will." (See Super. Ct. San Luis Obispo County, rule 11.303.)</i>
23	26PR-0287	Estate of: William Kengel	Petition Filed: 8/21/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to November 3, 2026 at 9:01 a.m. in D-4. All additional items must be filed by October 13, 2026. The following is noted:</i> 1. <i>Item 1 of the Petition is incomplete. The name of the newspaper that publication will occur in must be specified.</i> 2. <i>Item 2b of the Petition is incomplete. The proposed personal representative must be named.</i> 3. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i> 4. <i>Proposed letters have not been submitted.</i> 5. <i>A proposed order is needed.</i>
24	26PR-0293	Estate of: Stephan Sowell	Petition Filed: 08/28/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to October 20, 2026 at 9:01 a.m. in D-4. All additional items must be filed by October 13, 2026. The following is noted:</i> 1. <i>Item 1 of the Petition is incomplete. The name of the newspaper that publication will occur in must be specified.</i> 2. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i>
<u>The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:</u>				
1	19PR-0205	Estate of: David King	Petition Filed 4/2/26 - Re-Open Probate	APPROVED LIST: <i>The matter is recommended for approval in part and denial in part as follows:</i> 1. <i>The Probate action was dismissed on October 29, 2021. Notice of Dismissal was served the same day. Pursuant to Code of Civil Procedure section 457(b), the sixty-day period has passed to seek the dismissal</i>

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				<i>to be set aside. As such, relief cannot be obtained via this section from the dismissal.</i> 2. <i>It does appear the Court can proceed to re-open the probate under Probate Code section 12252, which allows the reopening of an estate “because it becomes necessary or proper for any other cause.” Based on the circumstances discussed in the pleadings, a finding under Probate Code section 12252 appears applicable and appropriate to distribute the remaining assets of the estate.</i> 3. <i>Petitioner to submit an Order on this Petition, a new Order to Probate and new Letters. The prior orders will be confirmed, in that Megan Bouldry is appointed as executor, the will previously admitted to probate on Sept. 10, 2019 is confirmed, full IAEA powers are granted, bond is waived. Howard Nicolson is again appointed as the probate referee.</i> 4. <i>An OSC re: Status Report will be set for January 5, 2027 at 9:00 a.m. in D4. By December 8, 2026 Petitioner is <u>to file and serve</u> a formal Status Report that is compliant with Probate Code section 12201 on all parties. If the Status Report is filed by December 8, 2026, the clerk’s office has authorization to change the January 5, 2027 OSC to the Status Report hearing.</i>
4	22PR-0402	Estate of: Antonette Waiton	Status Report Filed: 9/8/2026	APPROVED LIST: <i>It is recommended the Court approve the Status Report filed on September 8, 2026. The next Status Report or Petition for Final Distribution is set for September</i>

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				<i>28, 2027 at 9:00 a.m. in D-4. All additional materials must be filed by August 31, 2027.</i>
12	25PR-0145	Estate of: Henry Gritzfeld	Petition Filed: 4/14/2026 - Final Distribution	APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following:</i> <i>1. The Petition provides a list of assets on hand for distribution, but the assets listed on the Inventory and Appraisal are not listed on hand. Specifically, the three accounts at SkyOne Federal Credit Union were not included. If they have been transferred or otherwise disposed of, compliance with California Rules of Court, rule 7.550 is needed explaining the change in the form of assets. This is required even when an account is waived. (Cal. Rules of Ct., rule 7.550, subd. (b)(6).)</i> <i>2. Petitioner has requested costs of \$1,318.40 be allowed to counsel but costs are not included in the prayer of the Petition. It is recommended the Court grant costs to counsel in the amount of \$1,318.40.</i>
14	25PR-0286	In Re: Richard C. Nutting Family Trust Dated August 2, 1995	Petition Filed 9/4/2025 [DUE 8/18/26] - to Compel Accounting; cont'd 3/17/26 (Amended Petition Filed 8/20/26)	APPROVED LIST: <i>The matter is recommended for approval as modified herein. As no Objection has been filed, it is recommended the Court remove Mark Pelletier as the trustee of the trust and appoint J. Dean Johnson as the successor Trustee to serve without bond. It is recommended all other requests be approved, but for the distribution of the remaining assets, which will be determined by the successor trustee as part of the administration. A prove-up hearing will need to be scheduled for damages, attorneys' fees and costs requested. Petitioner is to schedule the same with the Civil Clerk's Office. A proposed order is needed.</i>

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21	26PR-0209	Estate of: Kelly Black	Petition Filed: 6/12/2026 [DUE: 9/15/26] INTESTATE; Cont'd 8/18/26	APPROVED LIST.
<u>The following matters remain SET FOR HEARING and you should appear:</u>				
2	21PR-0333	Estate of: Margret Troutman	Order to Show Cause Re: Proof of Deposit [DUE 8/25/26]; cont'd 4/21/26, 7/21/26	HEARING LIST: <i>Zoom or personal appearance is required.</i>
3	21PR-0377	Estate of: Shirley Miller	Petition Filed 6/9/2025 - Final Distribution and Waiver of Accounting; cont'd 11/25/25, 6/23/26 [DUE 9/1/26]	HEARING LIST: <i>Zoom or personal appearance is required. The Declaration filed August 31, 2026 has been reviewed. The following issues remain from the last hearing:</i> <i>1. It appears that the Inventory and Appraisal filed on 6/17/24 listed \$201,187.60 in Item 2, but those items were not appraised as treasury notes. Rather, it appears Petitioner liquidated these assets after the date of death during the administration and listed the net proceeds, with income earned. The 26 page May Supplement provided advises the notes were valued at around \$200,000 at death with \$18,375.10 in interest accrued. Taxes were paid on the sale, but that is not part of the appraisal value. As such, were the notes sold for \$200,000 and who appraised the value at \$200,000? The taxes should have been listed as disbursements and the interest accrued would be a receipt. Revision is needed.</i>

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				2. <i>Clarification is needed on the Inventory and Appraisals as none of them comply in full with the Probate Code. It is still unclear what the assets of the estate were on the date of death due to the errors.</i> a. <i>June 23, 2023- The Inventory and Appraisal filed on 6/23/23 for \$1,009,075.75 is listed as a "FINAL" Inventory and Appraisal on the actual document but is listed as an amended corrected Final in the Petition. The <u>May 22, 2026 Supplemental Declaration</u> indicates this was the "Value after the date of death".</i> b. <i>January 23, 2024- The 1/23/24 Inventory and Appraisal is listed as a Supplement on the actual document and in the Petition, but it appears to be correcting or modifying the 6/23/23 document by reappraising assets. <u>The May 22, 2026 Supplemental Declaration indicates this was the "value on the date of death".</u> It appears this Inventory is the Amended Inventory and the June 23, 2023 document is superseded by this document.</i> c. <i>June 6, 2024- The 6/17/24 Inventory is listed as a Supplement and is the first time the treasury note proceeds are listed. <u>The May 22, 206 Supplemental Declaration indicates this is the supplement to the "amended Final I&A", which appears to be the January 23, 2024 document.</u></i>

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				<i>d. May 22, 2026- The 5/22/26 Inventory is an "Amended" Final Inventory, apparently superseding all three prior documents. Nevertheless, it fails to list out the bank accounts and lumps them all into one "Bank" category. It also continues the treasury note error. This document, as the "Amended Final Inventory and Appraisal", is insufficient as it is not completed accurately.</i> <i>3. The statutory fee cannot be determined based on the issues noted above with the Inventories and Appraisals filed.</i>
6	23PR-0038	Estate of: Connie Haueter	Status Report or Petition for Final Distribution	HEARING LIST: Zoom or personal appearance is required.
7	23PR-0068	Estate of: Leonor Rodriguez	Order to Show Cause re Status Report [DUE 9/1/26] cont'd 1/13/26, 8/11/26	HEARING LIST: Zoom or personal appearance is required.
8	23PR-0119	Estate of: Helen Whitehurst	Order to Show Cause re Status Report or Petition for Final Distribution [DUE 9/1/26]; cont'd 4/21/26 & 8/18/26	HEARING LIST: Zoom or personal appearance is required.

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9	24PR-0261	Estate of: Joan Peterson	Petition Filed: 4/10/2026 - Final Distribution	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. A consent to accept property from the Trustee of the beneficiary trust is needed. (Superior Court, San Luis Obispo County Local Rule, rule 11.1105.) 2. A Declaration is needed regarding how the interest of \$1,433.25 was accrued considering the low annual percentage yield. The bank statement provided indicates that in 2025 the total interest was \$19.27. Under Probate Code §1062, the interest should be itemized, as it appears the interest was received in monthly payments. 3. The statutory fees cannot be determined until clarification is provided regarding the interest issue above. 4. A proposed order is needed.
10	25PR-0088	Estate of: Arthur Wilkerson	Petition Filed 3/12/2025 - WILL [DUE 8/18/26]; cont'd 5/06/25, 7/1/25, 9/16/25, 4/28/26	HEARING LIST: Zoom or personal appearance is required. This is the fifth hearing on this Petition. The following issues remain: 1. A supplement to the Petition was filed on August 15, 2025, but it does not appear it was served on all parties. Proper service or waivers for the supplement are needed. 2. A supplement to the Petition was filed on March 23, 2026, but it does not appear it was served on all parties. Proper service or waivers for the supplement are needed. 3. Item 2d(1) of the Petition is checked. A bond of \$36,500 is required as the proposed personal

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				<i>representative lives out of state. (Cal. Rules of Court, rule 7.201(b); Super. Ct. San Luis Obispo County, rule 11.306). It appears from the supplement that Petitioner agrees to a bond.</i> 4. <i>The Declaration filed March 23, 2026 has been received. Additional information is needed regarding the attorney who allegedly had a copy of the will. The declaration indicates the lawyer represented the original will has not been revoked, but it is unclear how the lawyer knows this if they did not have the original will. A declaration from the lawyer stating how they know this information is needed.</i>
15	25PR-0307	Estate of: William Vetter, III	Order to Show Cause re Dismissal - Petition Filed 9/17/2025 - Domestic Partner Property Petition [DUE 8/25/26] c/f: 4/14/26, 6/29/26 (Amended Petition Filed 8/26/26)	HEARING LIST: Zoom or personal appearance is required. It appears an Amended Petition was filed August 26, 2026. Based on the lack of supporting attachments, it is unclear if the document filed August 26, 2026 was intended as an Amended Petition or an Amendment to the original Petition. The following issues appear in the document filed August 26, 2026: 1. <i>Proof of Service of Notice of Hearing (JC Form DE-120) filed August 26, 2026 is incomplete. Item 1 of the form does not indicate the complete title of the document that Petitioner has filed. Additionally, Items 3 and 4 of the proof of service are incomplete. Item 3a or 3b must be checked, and Item 4a and 4b must be completed. It is unclear why Matthew Vetter is described as a minor and was served in care of another person, as the Amended Petition indicates that he is 18 years old.</i>

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				2. <i>Item 1 of the Amended Petition is incomplete. The Petitioner must be named.</i> 3. <i>Attachment 4c, a copy of the Will, is not attached to the Amended Petition. The below issues, as previously noted regarding the Will attached to the original Petition filed September 17, 2025, will apply if the Will referenced in the Amended Petition is the same:</i> <i>a. The original will of the Decedent has not been lodged with this Court, as required by Probate Code section 8200. Item 4 of the Petition indicates he died a resident of this County.</i> <i>b. For purposes of this Petition, the Court does not admit the will to probate as requested within the original Petition's attachments. Nevertheless, the Court will continue to review the validity of the will once the original is submitted to the Court as part of this Petition. A proof of subscribing witness is needed from the notary as no other witnesses were present. A declaration explaining how execution occurred in the hospital without an ombudsman present.</i> 4. <i>Attachment 7a is not attached to the Amended Petition.</i> 5. <i>Attachment 7b is not attached to the Amended Petition.</i> 6. <i>Attachment 10 is not attached to the Amended Petition.</i>

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				7. <i>Item 13 of the Amended Petition indicates that two pages of attachments are included, but there are no attachments to the Amended Petition.</i> 8. <i>For the purposes of clarity, based on the information provided in the original Petition, it appears the asset at issue is a one-half interest held by the decedent at the real property 13570 Santa Lucia Road. Petitioner is already the owner of the other one-half interest, as she was the tenant in common with decedent prior to his death. It is unclear if this remains the asset at issue for the Amended Petition.</i> 9. <i>If the above-mentioned property remains the asset at issue, it is noted the property was acquired in 2018 based on the deed presented with the original Petition. The parties did not establish the registered domestic partnership until May 30, 2023. It is unclear how this property would pass as community property to the Petitioner. Item 8 of the Petition and the Amended Petition indicate that no written agreement exists to transmute the property from separate to community property.</i>
17	26PR-0120	In Re: Jung Family Trust	Petition Filed: 4/3/2026 – Instructing Trustee to Take Action	<i>Still under review, please check back.</i>
18	26PR-0121	In Re: Ronald G. Snyder Revocable Living Trust	Petition Filed 4/6/26 – Invalidating Trust	<i>Still under review, please check back.</i>

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			Amendment and Removing Trustee	
19	26PR-0124	In Re: The Clifford and Sandra Dodgen Trust	Petition Filed: 4/7/2026 - Return of Trust Property	HEARING LIST: <i>Zoom or personal appearance is needed.</i> 1. <i>Is Sandra Dodgen still living? The petition indicates she was diagnosed with an illness in December of 2025, but provides no other information. If she is still living, proof of service of Notice of Hearing has not been provided.</i> 2. <i>How is this County the principal place of administration? Who is the Petitioner in relation to the settlors and this County? Additional fact specific details to establish venue are needed.</i> 3. <i>What county were the settlors residing in at death? Again, it is unclear if Sandra Dodgen is still living based on the petition. It is unclear if the Wills have been properly lodged with the Court of the County of residence based on what has been filed. (Prob. Code, §8200.)</i> 4. <i>A proposed Order is needed.</i>
20	26PR-0125	In Re: The Theodora Hall Burton Testamentary Trust Created Under the Will of Theodore P. Hall	Petition Filed: 4/13/2026 – Modification of Trust and Nomination of Successor Trustees	<i>Still under review, please check back.</i>
25	25PR-0110	Estate of: Roberts Christie, Junior	Order to Show Cause re: Proof of Deposit; cont'd 3/24/26, 6/2/26, 7/28/26, 8/13/26	HEARING LIST: <i>Zoom or personal appearance is required.</i>

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The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).
2. Emails must contain:
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
 - c. **Reason for Request.**
 - d. **No Attachments.**
3. Further, email inquiries must conform to the following guidelines:
 - a. Questions must be from an attorney or party on the case.
 - b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
 - c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
 - d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
 - e. Emails advising the Court of possible oversights may be sent.
 - f. **Continuances may not be requested via the probate email address.**
4. This email procedure is NOT to be utilized for:

- a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
 - b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
 - c. Confirmation that documents have been reviewed.
5. Response Time. All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.